

Terms of Reference (TOR)

Selection of Service Provider

[from Companies/ Agencies already empaneled with
HARTRON]

For

Design, Development, Deployment, and Maintenance
of Haryana State Legal Knowledge System

For

Office of the Chief Secretary, Government of Haryana

TOR No. HARTRON/PM(ICT)/ToR-CSO/2026-27/03

Released by:



Haryana State Electronics Development Corporation Limited

(Regd. Office: SCO 111-113, Sector 17-B Chandigarh-160017;
U00000CH1982SGC004963)

Bays 73-76, Sector 2, Panchkula

Phone (0172) - 2560442, 2922085

Email: ebidshartronsw@gmail.com; charan.hartron@gmail.com

Contents

DISCLAIMER	2
1. Invitation to Bid	4
2. Terms of reference	5
3. Project Background.....	7
4. BACKGROUND & PROBLEM STATEMENT	7
5. Scope of Work (SOW).....	8
4.1 VISION & CORE PRINCIPLES	8
4.2 SYSTEM BOUNDARIES & LEGAL CORPUS COVERAGE.....	8
4.3 USER PERSONAS & ACCESS RIGHTS	9
4.4 FUNCTIONAL REQUIREMENTS (DETAILED)	9
4.5 Security & Deployment Requirements.....	11
4.6 Training & Capacity Building	11
6. Duration of Project:	12
7. Payment Terms	12
8. Penalty Terms Delay in Deliverables.....	12
9. Instruction to Bidders	13
10. Evaluation Process.....	17
11. General Terms & Conditions	20
5.....	25
6 Forms required for Technical Proposal	26
7 Letter for No Blacklisting	29
8 Checklist to be enclosed with Technical bid	30

DISCLAIMER

This Terms of Reference (TOR) is for the Selection of Service Provider for Design, Development, Deployment, and Maintenance of Haryana State Legal Knowledge System for the Chief Secretary's Office, Government of Haryana and is issued by Haryana State Electronics Development Corporation Limited (referred in the document as HARTRON).

Whilst the information in this TOR has been prepared in good faith, it is not and does not purport to be comprehensive or to have been independently verified. Neither HARTRON, nor its employees, nor any of their advisors nor consultants accept any liability or responsibility for the accuracy, reasonableness or completeness of the information contained in the TOR, or for any errors, omissions or misstatements, negligence or otherwise, relating to the proposed Project/ Product Name, or makes any representation or warranty, express or implied, with respect to the information contained in this TOR or on which this TOR is based or with respect to any written or oral information made or to be made available to any of the recipients or their professional advisers and, so far as permitted by law and except in the case of fraudulent misrepresentation by the party concerned, and liability therefore is hereby expressly disclaimed.

The information contained in this TOR is selective and is subject to update, expansion, revision and amendment at the sole discretion of HARTRON. It does not purport to contain all the information that a recipient may require for the purposes for making a decision for participation in this process. Each Party must conduct its own analysis of the information contained in this TOR, to correct any inaccuracies therein and is advised to carry out its own investigation into the proposed Project/ Product Name, the regulatory regime which applies there to and by and all matters pertinent to this Product and to seek its own professional advice on the legal, financial and regulatory consequences of entering into any agreement or arrangement relating to this Project. HARTRON shall not be responsible for any direct or indirect loss or damage arising out of or for use of any content of the TOR in any manner whatsoever.

This TOR includes certain statements, Project/Product Name, etc. with respect to the Project/Product Name. Such statements, Project/Product Name, etc. reflect various assumptions made by the management, officers, employees, consultants, and experts of HARTRON which (the assumptions and the base information on which they are made) may or may not prove to be correct. No representation or warranty is given as to the reasonableness of assumptions on which they may be based and nothing in this TOR is or should be relied on as a promise, representation or warranty.

HARTRON shall be the sole and final authority with respect to qualifying a proposer through this TOR. The decision of HARTRON in selecting the 'Service Provider' (SP) who qualifies through this TOR shall be final and HARTRON reserves the right to reject any or all the proposals without assigning any reason thereof.

HARTRON may terminate the TOR process at any time without assigning any reason and upon such termination, HARTRON shall not be responsible for any direct or indirect loss or damage arising out of such a termination.

1. Invitation to Bid

HARTRON on behalf of Chief Secretary Office, Government of Haryana invites sealed proposals from eligible bidders for “Design, Development, Deployment, and Maintenance of Haryana Legal Knowledge System for the Chief Secretary Office, Government of Haryana”.

General Information

1.	TOR Inviting Authority Designation and Address	Managing Director, Haryana State Electronics Development Corporation Limited (HARTRON), SCO 111-113, 2 nd Floor, Sector 17-B, Chandigarh - 160 017
2.	Name of the Work/Project	Selection of Service Provider for Design, Development, Deployment, and Maintenance of Haryana State Legal Knowledge System for the Chief Secretary Office, Government of Haryana.
	TOR reference	HARTRON/PM(ICT)/ToR-CSO/2026-27/03
3.	Starting date of ToR	14.05.2026 from 09:00 AM onwards.
4.	Last date and time for submission of proposals.	19.05.2026 by 05:00 PM.
5.	Date and time of opening Technical proposals.	20.05.2026 at 10:00 AM
6.	Technical Presentations for all the bidding agencies.	21.05.2026 from 11:30 am through Physical Mode
7.	Date and time of opening financial proposals and Venue.	Will be intimated later. Venue: Hartron Bhawan, Bays No. 73- 76, Sector 2, Panchkula - 134 109
8.	Validity of Financial Proposals.	Financial Proposals must remain valid for a period of 180 days after the opening of Financial Proposals.

Note: MD, HARTRON reserves the right to change any schedule of TOR proposal process. In case a Central/ State Holiday is declared on any day/ dates as specified above, the event shall be held on the next working day at same time and same venue.

Address for correspondence: PM(ICT), Hartron Bhawan, Bays No. 73-76, Sector 2, Panchkula - 134 109 **email:** dhicthartron@gmail.com

Important Note:

1. The Applicants/Bidders must complete Application/Bid Preparation & Submission stage on scheduled time as mentioned above. If any Applicant/Bidder failed to complete his/her aforesaid stage in the stipulated online time schedule for this stage, his/her Application/Bid status will be considered as Application/Bid not submitted.
2. Applicant/Bidder must confirm & check his/her Application/Bid status after completion of his/her all activities for e-bidding.
3. Applicant/Bidder can rework on his/her bids even after completion of Application/Bid Preparation & submission stage (Application/Bidder Stage), subject to the condition that the rework must take place during the stipulated time frame of the Applicant/Bidder Stage.
4. In the first instance, the online payment details of TOR document fee + eService& Technical Envelope shall be opened. Henceforth financial bid quoted against each of the items by the shortlisted bidder/agency wherever required shall be opened online in the presence of such bidders/agency who either themselves or through their representatives choose to be present. The bidder can submit online their bids as per the dates mentioned in the schedule/important dates above.

2. Terms of reference

Haryana State Electronics Development Corporation Ltd. (HARTRON), a State Govt. undertaking invites proposals for the Selection of System Partner for TOR No. HARTRON/PM(ICT)/ToR-FDH/2025-26/01 from Companies/ Agencies already empanelled with HARTRON.

Proposal Preparation Costs

The proposer will be responsible for all costs incurred in connection with the participation in this process, including, but not limited to, costs incurred in conduct of informative and other diligence activities, participation in meetings/ discussions/presentations, preparation of proposals, providing any additional information required by HARTRON to facilitate the evaluation process and all such activities related to the TOR process. This TOR does not bind HARTRON to award a contract or to engage in negotiations. Further, no

reimbursable cost may be incurred in anticipation of award. **HARTRON's Right to Extend the Proposal Deadlines and terminate the Process**

- i. HARTRON may, at its discretion, reserve the right to postpone or cancel, extend the deadline for submission of proposal.
- ii. HARTRON may terminate the proposal process at any time without assigning any reason. HARTRON makes no commitments, expresses or implies, that this process will result in a business transaction with anyone.
- iii. This TOR does not constitute an offer by HARTRON.

Period of Validity of Offer

- The offer should remain valid for 180 days after the date of opening of financial proposals.

PROCEDURE FOR SUBMISSION OF PROPOSALS

- Proposals to be submitted as per the "Important Information" table.
- The price would be strictly as per **Annexure provided in this TOR**. The proposals not conforming to the format shall be rejected.
- The prices quoted shall be in INDIAN RUPEES (INR) only. The TOR proposal is liable for rejection if the price proposal contains conditional offers.
- Proposer must submit the Commercial Proposal only in the format provided in **Annexures** of this document via online mode only. The details of Cost Components shall be submitted in the format provided in the **Annexures** of this document.
- The Financial Proposal should only indicate prices without any condition and should include all taxes, duties, fees, levies and other charges levied by Central & State as may be applicable in relation to activities proposed to be carried out. All the taxes shall be quoted separately under relevant sections.

3. Project Background

The selected System Integrator (SI) shall design, develop, implement, integrate, and maintain the Haryana Legal Knowledge System as a next-generation legal knowledge system transforming the State's legal ecosystem from fragmented repositories into a centralized, AI-enabled, knowledge graph-driven platform.

The platform shall act as a single source of truth for all legal instruments and provide decision support to the Chief Secretary's Office, while also enabling departments and citizens to access structured legal intelligence.

4. BACKGROUND & PROBLEM STATEMENT

Current State:

- Legal instruments (Acts, Rules, Notifications, Circulars, Case Laws) are stored across multiple departmental silos.
- No single, reliable source of truth exists.
- Citizens and government officials struggle to locate relevant legal provisions.
- Existing search is keyword-based, failing to understand intent or semantic relationships.
- Amendments and repeals are not formally tracked or version-controlled.
- No cross-department linking of related legal instruments.

Desired State:

- A centralized knowledge graph interconnecting all State legal instruments.
- AI-powered natural language query interpretation that does not generate any textual response but directly points to exact document locations (document, section, page, paragraph).
- Version-controlled, machine-readable legal corpus.
- Role-based access for departmental document upload and management.
- Public access for citizens to search and retrieve authoritative legal text.
- Legal instruments (Acts, Rules, Notifications, Circulars, Case Laws) are stored across multiple departmental silos.
- No single, reliable source of truth exists.
- Citizens and government officials struggle to locate relevant legal provisions.
- Existing search is keyword-based, failing to understand intent or semantic relationships.
- Amendments and repeals are not formally tracked or version-controlled.
- No cross-department linking of related legal instruments.

5. Scope of Work (SOW)

The selected bidder (System Integrator - SI) shall design, develop, implement, and maintain the Haryana Legal Knowledge System as an integrated, AI-enabled legal intelligence system.

The platform shall move beyond a conventional document repository and establish a living legal knowledge graph, interconnecting all State legal instruments into a queryable, version-controlled, and intelligence-driven ecosystem.

4.1 VISION & CORE PRINCIPLES

Vision Statement

A silent, intelligent retrieval engine that understands natural language, searches the legal knowledge graph, and silently points the user to the exact page, paragraph, and section of the authoritative legal document - without speaking a single word of its own.

Core Principles

Principle	Description
Zero Generation	The AI shall not generate any textual content. Not a word, sentence, summary, or greeting.
Evidentiary Traceability	Every search result must link directly to an authoritative source document with exact page/paragraph.
Single Source of Truth	All legal instruments are version-controlled and centrally managed.
Semantic Retrieval	AI may interpret user intent but only to retrieve and rank documents, never to synthesize answers.
Verbatim Only	Any excerpt displayed must be an exact character-for-character copy from the source document.
Role-Based Access	Departments can upload and manage their documents; citizens have read-only search access.
Auditability	Every query and retrieval is logged for transparency and compliance review.

4.2 SYSTEM BOUNDARIES & LEGAL CORPUS COVERAGE

In-Scope Legal Instruments (All must be machine-readable)

Category	Examples
----------	----------

State Acts	All Haryana Acts (including legacy/colonial-era laws still in force)
Subordinate Legislation	Rules, Regulations, Bye-laws, Schemes
Executive Instruments	Notifications, Circulars, Orders, Office Memoranda
Constitutional References	List II & III subjects applicable to State
Judicial Decisions	Punjab & Haryana High Court and Supreme Court rulings relating to Haryana laws

4.3 USER PERSONAS & ACCESS RIGHTS

User Type	Access Level	Primary Actions	Authentication
Citizen	Public read-only	Search, filter, view document pointers, download PDFs	None (public portal)
Departmental User	Department-specific write	Upload, tag, version, retire documents within own department	Password / SSO
Department Approver	Department-specific write + approve	Review and approve uploads before publication	Password / SSO
Chief Secretary's Office	Cross-department read + analytics	View dashboards, impact analysis, gap identification	Password / SSO
System Administrator	Full system	User management, role configuration, taxonomy edits, audit logs	MFA-protected
Auditor	Read-only audit	View audit logs, query history, generation compliance reports	Password / SSO

4.4 FUNCTIONAL REQUIREMENTS (DETAILED)

Knowledge Graph Core (Module A)

ID	Requirement
A-01	System shall model all legal instruments as graph nodes with unique identifiers
A-02	System shall support relationship types: `amends`, `supersedes`, `repealed_by`, `refers_to`, `derived_from`, `interpreted_by`
A-03	System shall maintain version-controlled nodes with effective date ranges
A-04	System shall support time-aware querying (e.g., "What was the law on 1 Jan 2020?")

A-05	System shall automatically link cross-department legal instruments (e.g., Notification under Act X)
A-06	System shall export the full knowledge graph in JSON-LD or RDF format

Query Understanding & Document Retrieval (Module B - Zero Generation Constraint)

ID	Requirement
B-01	System shall accept natural language queries in English and Hindi
B-02	System shall parse user query to extract entities (Act names, section numbers, keywords, permits, licenses)
B-03	System shall perform semantic search using vector embeddings (without any generative model in the response path)
B-04	System shall return ONLY structured document pointers - no AI-generated text, summaries, or explanations
B-05	Each search result shall contain: document title, section/rule/clause number (if applicable), page number, paragraph number, heading (verbatim), and optional verbatim excerpt
B-06	System shall rank results by relevance (hybrid: vector similarity + legal authority weight)
B-07	System shall NOT return any conversational or follow-up text generated by AI
B-08	System shall NOT summarize, paraphrase, or combine information from multiple documents
B-09	System may suggest alternative search keywords (e.g., "Try: factory license") without generating legal content
B-10	System shall support faceted filters (department, act name, year, document type, active/repealed status)
B-11	System shall log every user query and the exact document pointers returned (anonymized for citizens)

Document & Metadata Management (Module C)

ID	Requirement
C-01	System shall support bulk upload (ZIP, folders, scanned PDFs with OCR)
C-02	System shall perform auto-metadata extraction (date, number, authority, document type)
C-03	System shall provide manual meta-tagging dashboard for departmental users
C-04	System shall support hierarchical tagging (Act → Chapter → Section → Rule)
C-05	System shall track amendments (link original section to amended section)
C-06	System shall support document approval workflow (Draft → Review → Published)

Departmental User Portal (Module D)

ID	Requirement
D-01	Secure login with department credentials (optional SSO with e-Office)
D-02	Role-based permissions: Uploader, Approver, Viewer, Editor, Department Admin
D-03	Dashboard showing recent uploads, pending approvals, version conflicts
D-04	Document version rollback capability (fully audited)

D-05	Bulk metadata edit across multiple documents
D-06	Notify related departments when a document references their instruments
D-07	Download audit trail for department's own documents

Citizen Portal (Module E)

ID	Requirement
E-01	Public access without login for read/search
E-02	Simple search bar with autocomplete (Act names, common terms)
E-03	Filter by: department, act name, year, document type, legal status (active/repealed)
E-04	Bookmark / save queries (browser local storage or optional account)
E-05	Download original PDF of any legal instrument
E-06	Strictly prohibited: Any AI-generated summary, explanation, help text, or chatbot response
E-07	"Show exact location" - PDF viewer opens at exact page and paragraph
E-08	WCAG 2.1 AA accessibility compliance
E-09	Mobile-responsive design
E-10	Static UI labels only (e.g., "Document Title", "Section", "Page") - no dynamic text from AI

Audit & Compliance (Module G)

ID	Requirement
G-01	Every user query shall be logged with timestamp, user type (citizen/dept/admin), and exact document pointers returned
G-02	System shall log that zero AI-generated characters were present in the response
G-03	Monthly compliance report shall verify no generative output occurred (sample of 100 queries)
G-04	Audit log shall be tamper-evident (append-only with cryptographic hash chain)
G-05	Export audit log in CSV/JSON format for external review

4.5 Security & Deployment Requirements

The SI shall ensure:

- Deployment in State Data Centre / MeitY empanelled cloud
- No external AI processing of sensitive legislative drafts
- End-to-end encryption
- Multi-factor authentication
- Third-party security audit before Go-Live

4.6 Training & Capacity Building

The SI shall:

- Conduct training for:
 - CS Office

- Law Department
- Administrative Departments
- Provide:
 - User manuals
 - SOPs
 - Helpdesk support

6. Duration of Project:

The Development Phase which includes design and development of the code for software modules, modules integration, quality assurance, deployments, security compliances and process creation for support activity should not exceed over a period of four (04) months.

7. Payment Terms

Design, Development, Deployment, and Maintenance of Haryana Legal Knowledge System for the Chief Secretary's Office, Government of Haryana.

S. No	Key Activities / Milestones	Description	Payment (%) of Fixed Price Cost	Remarks
1	Phase 1	Detailed Functional Requirement Study, System Requirements Study and report submission.	20%	Payment will be released after completion of respective phase and authority's approval.
2	Phase 2	Development and implementation of required solutions.	40%	
3.	Phase 3	UAT and Go-Live of application.	20%	
4.	Phase 4	Completion of hand holding period	20%	

8. Penalty Terms Delay in Deliverables

If the progress of assignment is found to be non- satisfactory or delayed at any point of time, HARTRON reserves the right to impose penalty @1% of quarterly payment for each default. The sum total amount of all unpaid and paid penalties shall not exceed 5% of total assignment fee. HARTRON reserves the right to recover any dues payable by the

selected bidder/penalties from any amount outstanding to the credit of the selected bidder including the pending bills and/or revoking bank guarantee under this contract.

No Penalty will not be applicable if the delay is not attributable to the agency.

9. Instruction to Bidders

Availability of Tender Document

The tender document be downloaded from Haryana e-Procurement Portal (<https://eprocurement.hartronservices.com/>)

The Bidder shall bear all costs associated with the preparation and submission of the Bid. HARTRON shall, in no case, be responsible or liable for these costs, regardless of the conduct or the outcome of the bidding process.

9.1. Language of Bid/Contract

The language of the bid shall be in English and all correspondence in this regard shall be in English language only.

9.2. Validity of Bids

The bids shall be valid for a period of 180 days from the date of financial opening of the bids.

9.3. Number of Bids

A bidder is eligible to submit only one bid against this TOR.

9.4. Completeness of Bids

Bidders are advised to study all instructions, forms, terms, requirements and other information in the TOR documents carefully. Submission of the bid shall be deemed to have been done after careful study and examination of the TOR document with full understanding of its implications.

The bidders must include all documentation and comply with all requirements as specified in the TOR. Failure to comply with the requirements of this TOR may lead to rejection of the bid.

9.5. Preparation of Bids

Proposal shall be typed and signed by the authorized signatory of the bidder who shall initial each page. All the alterations, omissions, additions, or any other amendments made

to the proposal shall be initialized by the person(s) signing the proposal. The proposals must be properly signed by a duly authorized person of the bidder.

A copy of the Power of Attorney certified under the hands of a director of the bidder or a notary public on the specified form shall accompany the proposal.

9.6. Other Conditions

The following terms are applicable to this TOR and the bidder's bid.

- a. HARTRON reserves the right to cancel the work order assigned to the company/agency at any time without assigning any reason for the same. In case the work order is cancelled then the costs incurred will be borne by the selected bidder and under no circumstances the System Integrator shall be eligible for any payment or damages from HARTRON.
- b. Any customization work done, whether acceptable or unacceptable, developed or customized under a contract awarded as a result of this TOR shall be the sole property of the HARTRON unless stated otherwise.
- c. Timing and sequence of events resulting from this TOR shall ultimately be determined by HARTRON.
- d. No oral conversations or agreements with any official, agent or employee of HARTRON shall affect or modify any terms of this TOR and any alleged oral agreement or arrangement made by a bidder with department, agency, official or employee of HARTRON shall not supersede those results from this TOR process. Oral communications by HARTRON to bidders shall not be considered binding on HARTRON nor shall any written material provided by any person other than HARTRON.
- e. Proposals are subject to rejection if they limit or modify any of the terms and conditions or specifications of this TOR.
- f. By responding, the bidder shall be deemed to have represented and warranted: that its bid is not made in connection with any competing bidder submitting a separate response to this TOR and is in all respects fair and without collusion or fraud; that the bidder did not participate in the TOR development process and had no knowledge of the specific contents of the TOR prior to its issuance; and that no employee or official of HARTRON participated directly or indirectly in the bidder's bid preparation.
- g. Statutory audit will be conducted any time before Go-Live or after start of O&M phase by HARTRON. The auditing party would be decided by HARTRON. Manpower

provided by bidder would be required to support the audit exercise as part of the project execution.

- h. Neither the bidder nor any of bidder's representatives shall have any claims whatsoever against HARTRON or any of its respective officials, agents, or employees arising out of or relating to this TOR or these procedures (other than those arising under a definitive service agreement with the bidder in accordance with the terms thereof).
- i. Post the release of the TOR and until contract award, bidders shall not, directly or indirectly, solicit any employee of HARTRON to leave HARTRON or any other officials involved in this TOR process in order to accept employment with the bidder, its affiliates or any person acting in concert with the bidder without prior written approval of HARTRON. The same will apply to HARTRON also.
- j. HARTRON reserves the right to terminate full Bank Guarantee or any part of it furnished by the System Integrator with or without termination of contract, in case HARTRON or its nominated agency at any time during the tenure of the project observed that the bidder failed to comply with its obligations under the Contract.
- k. No commitment of any kind, contractual or otherwise shall exist unless and until a formal written contract has been executed by or on behalf of HARTRON. Any notification of best evaluated/ preferred bidder status by HARTRON shall not give rise to any enforceable rights by the bidder.

9.7. **Financial Proposal**

Bidders shall upload the financial proposal in the format at **Annexures ("Forms Required for Financial Proposal")** clearly indicating the total lumpsum cost of services in both figures and words, in Indian Rupees, and signed by the bidder's authorized signatory. In the event of any difference between figures and words, the amount indicated in words shall be taken into account.

While submitting the Financial Proposal, the bidder shall ensure the following:

- i. All the costs associated with the assignment shall be included in the Financial Proposal. These shall cover equipment, surveys, overhead charges viz. travelling, boarding and lodging and out of pocket expenses in India. The total amount indicated in the Financial Proposal shall be without any condition and shall be final and binding. In case any assumption or condition is indicated in

the Financial Proposal, it shall be considered non-responsive and liable to be rejected.

- ii. The Financial Proposal shall take into account all expenses and tax liabilities. For the avoidance of doubt, it is clarified that all taxes shall be deemed to be included in the costs shown under different items of the Financial Proposal. Further, all payments shall be subject to deduction of taxes at source as per applicable laws.
- iii. All costs shall be expressed in INR.

9.8. Submission of Bids

You are requested to participate in the tender's process online. The bids shall be submitted online in two separate envelopes:

Envelope 1 -Technical Bid: The bidders shall submit all the required documents like Technical Criteria and all supporting documents as mentioned in ToR except the price bid.

Envelope 2 - Commercial Bid: The bidders shall quote the prices in price bid format under Commercial Bid.

These conditions will over-rule the conditions stated in the tender documents, wherever relevant and applicable.

9.9. Award of Contract

After selection, a Letter of Award (the "LOA") shall be issued by HARTRON to the selected bidder and the selected bidder shall, within 3 (three) days of the receipt of the LOA accept the same. In the event of non- receipt of acceptance of LOA by Selected Bidder by the stipulated date, HARTRON may, unless it consents to extension of time for submission thereof, take any action against the bidder like revoke the empanelment, forfeit the EMD etc. and the next eligible bidder may be considered.

Execution of Contract

After acknowledgement of the LOA as aforesaid by the selected bidder and submission of performance security, it shall execute the contract within 15 (fifteen) days from the date of issuance of LOA. The selected bidder shall not be entitled to seek any deviation in the agreement. If the selected bidder fails to sign the contract within the stipulated time, his

performance security shall be forfeited and appropriated by HARTRON. In such an event, HARTRON may invite the next ranked bidder for negotiations.

9.10. Ownership Rights

The solution developed (including but not limited to the data held within), information, works of authorship, inventions, discoveries, improvements, methods, processes, formulas, techniques, technology, know-how, ideas, copyrights, source code, designs, architecture diagrams, licenses reports, presentations and materials forming a part of or relating to the solution, this TOR, and all intellectual property and proprietary rights pertaining to the aforesaid (excluding any third party intellectual property rights) and anything (a) that is conceived, discovered, developed or otherwise made by the selected bidder, solely or in collaboration with others, in the course of performing the assignment pursuant to the award of contract under this TOR; or (b) that reflects or contains HARTRON/client's confidential information; or (c) that forms all or part of a deliverable to be provided by the selected bidder, whether developed as part of the assignment or separately ("Work Product"), will be the sole property of HARTRON and HARTRON shall have all the rights, title and interests in respect of the same, in accordance with the terms of the Contract. In no event can a selected bidder claim its control or any rights, title or interest over the developed solution, its software, code, database, or any work product.

10. Evaluation Process

Proposals will be reviewed by a Committee of Officers (the "Committee"). Evaluation of the bids will be done in two stages. The final awarding of the contract will be done based on a Quality & Cost Based Selection (QCBS) procedure. The following is the procedure for evaluation:

Technical evaluation

The technical bid documentation furnished by the bidder shall be examined in detail in order to determine whether they are substantially responsive to the requirements set forth in this document. In order to reach such a determination, HARTRON will examine the information supplied by the bidders, and shall evaluate the same as per the evaluation

criteria specified in this RFP/ToR. This evaluation will also involve scoring each component of the technical bid as per guidelines described in this RFP/ToR so that each technical bid will be assigned an overall score. The bidders will be required to make presentation on technical and operations aspect of the bid as per Data Sheet of this RFP/ToR. The Bidder is requested to take note of the following:

- i. Bidder are required to submit their technical bids strictly as per the technical bid format defined in the Annexure section of this document.
- ii. Technical proposal should not contain any financial information. Technical bids containing financial information will be summarily rejected.
- iii. A proposal shall be rejected at this stage if it does not respond to important aspects of the RFP and particularly the Scope of Work or if it fails to comply with the technical requirements.
- iv. The overall technical score cutoff is 60 marks. As one of the criteria, the bidder will require to attain the overall cutoff marks or more during the evaluation, for their commercial bids to be considered.
- v. Only the bidders who score a total technical score of 60 marks or more will qualify for the evaluation of their commercial bids.
- vi. After the technical evaluation is completed and approved, HARTRON shall open the Commercial Proposals of only those bidders who complied with the technical criterion specified in the RFP/ToR.

Commercial evaluation

Based on the results of the technical evaluation, the committee will then proceed to open and evaluate the commercial bids of only those bidders who are able to qualify the technical evaluation. The commercial evaluation will take into account the information supplied by the bidders in the Commercial Bid, and the same shall be evaluated in accordance with the evaluation criteria specified in this document. The bidders are requested to take note of the following:

- Bidders intending for commercial bid should necessarily give the financial details in the format given in **Annexure**. All the financial details should be given in the prescribed format only and in accordance to the details mentioned in the ToR.
- Assignment of marks to the financial bids will be done as follows: Once all the financial bids (of eligible bidders as mentioned above) have been opened, marks will be assigned to each financial bid as per the formula below:

Marks assigned to financial bid = $100 * [F1 / \text{Total Financial score under consideration}]$

Where Total Financial Bid is the total bid amount of the bid being evaluated as per Annexure, and F1 = the lowest financial bid of all the bids opened.

- The commercial bid should not be conditional and no technical information should be provided along with the commercial bid. In such cases, the bids would be summarily rejected.
- The bid should be comprehensive and inclusive for all the services to be provided by the bidder as per scope of his work. The payments would be made to selected bidder as per the finalized rate. No separate payment shall be made for services that are to be delivered by the System Partner as part of his scope of work for this project.
- The prices quoted shall be inclusive of all taxes, duties and statutory payments incident upon the bidder and it shall be a fixed price bid. Once the prices have been submitted as part of Commercial bid to HARTRON, no change /modification will be entertained for any cause whatsoever. The prices once provided by the bidder will be valid for the entire period of validity of the bid (till completion of project for the selected bidder as System Partner/ Implementation Partner).
- Any increase/decrease in the rates of taxes, duties, charges and levies at a later date and during the tenure of the bid/project will be to the account of HARTRON.
- Financial evaluation shall be done separately for Section A and Section B on the basis of price quoted for each section.
- Proposals not containing cost for any of the cost components shall be straight way rejected without any further consideration.
- The System Partner shall be responsible for the costs towards travel/stay, daily allowance or any other allowances with respect to their staff deployed for the execution of this project before or after the award of the contract.
- Agency/System Partner would be responsible for making the solution perform on a turnkey basis. In case the Agency/System Partner does not consider any specific hardware/software/system/service in the commercial bid, which would hamper the performance of the solution, HARTRON would not be held responsible. In such a case, the System Partner has to provide additional equipment/services, without any additional cost to HARTRON.

Quality and Cost Based Selection

The method employed for the final selection of the System Partner and award of the contract will be QCBS i.e. Quality and Cost Based Selection method, which would ensure the quality of the solution as well as the cost effectiveness of the same. Each bidder would be assigned a Technical Score (TS) and a Financial Score (FS) based on the technical and financial evaluation of the bid respectively. These scores would then be combined with pre-assigned weights (0.7 for technical score and 0.3 for financial score) and the bidders would be ranked as per this combined score. Bidder with the highest final composite score (**Final Composite Score = $TS \times 0.70 + FS \times 0.30$**) shall be declared as “Best Evaluated Bidder” and shall be entitled for the award of the contract.

The Bidders are requested to take note of the following:

- i. The weights assigned for each item is for the purpose of evaluation of this bid only and does not necessarily reflect the actual transactions/ quantities that would be undertaken for the period of contract.
- ii. In case of a tie in the final composite score, the bidder having highest technical score will be considered eligible for leading to the award of the contract.
- iii. HARTRON may waive any minor informality or non-conformity or irregularity in a bid, which does not constitute a material deviation, provided such a waiver does not prejudice or affect the relative ranking of any bidder.

11. General Terms & Conditions

i. Indemnity

The Selected bidder shall indemnify HARTRON for any direct loss or damage that is caused due to the bidder's fraud, wilful misconduct, and gross negligence, breach of confidentiality or breach of third-party intellectual property right or in the performance of services.

ii. Confidentiality

Information relating to the examination, clarification, evaluation, and recommendation for the selection of Bidders shall not be disclosed to any person who is not officially concerned with the process or is not a retained professional adviser advising HARTRON in relation to or matters arising out of or concerning the selection process. HARTRON will treat all

information submitted as part of the proposal, in confidence and will require all those who have access to such material to treat the same in confidence. HARTRON may not divulge any such information unless it is directed to do so by any statutory entity that has the power under law to require its disclosure or is to enforce or assert any right or privilege of the statutory entity and/or HARTRON.

iii. **Corrupt & Fraudulent Activities**

HARTRON shall reject a proposal for award, if it determines that the bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question. HARTRON shall deem a bidder ineligible, either indefinitely or for a stated period of time, to be awarded a contract if it at any time it determines that the bidder has engaged in corrupt and fraudulent practices in competing for or in executing a contract.

iv. **Force Majeure**

a) Definition

For the purposes of this assignment, “Force Majeure” means an event which is beyond the reasonable control of a party and which makes a party’s performance of its obligations hereunder impossible or so impractical as reasonably to be considered impossible in the circumstances and includes but is not limited to war, riots, civil disorder, epidemic, pandemic, quarantine restrictions, earthquake, fire, explosion, storm, flood or other adverse weather conditions, strikes, lockouts or other industrial action (except where such strikes, lockouts or other industrial action are within the power of the party invoking Force Majeure to prevent), confiscation or any other action by Government agencies.

Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or agents employees thereof, nor (ii) any event which a diligent party could reasonably have been expected to both (A) take into account at the time of the conclusion of the Agreement and (B) avoid or over come in the carrying out of its obligations hereunder.

Force Majeure shall not include insufficiency of funds or failure to make any payment required hereunder.

b) Measures to be Taken

- i. A party affected by an event of Force Majeure shall take all reasonable measures to remove such party's inability to fulfill its obligations hereunder with a minimum of delay.
- ii. A party affected by an event of Force Majeure shall notify the other Party of such event as soon as possible, and in any event not later than fourteen (14) days following the occurrence of such event, providing evidence of the nature and cause of such event and shall similarly give notice of the restoration of normal conditions as soon as possible. ii. The Parties shall take all reasonable measures to minimize the consequences of any event of Force Majeure.
- iii. During the period of its inability to perform the Services as a result of an event of Force Majeure, the Implementation Partner shall be entitled to be reimbursed for additional costs reasonably and necessarily incurred by it during such period for the purposes of the services and in reactivating the services after the end of such period. Such expenses will be approved by HARTRON. The Consultant will have to provide proper justification and certificate from their auditors for such expenses on the format as may be decided by HARTRON. The decision of HARTRON regarding such payments will be final.

v. **Breach of Contract**

- a) Material breach of Contract shall mean not submitting any deliverable as mentioned in 'Payment - Milestones' section of this document and not rectifying the default within 30 days of being notified about the default.
- b) The failure of a Party to fulfill any of its obligations shall not be considered to be a breach of or default under the Contract insofar as such inability arises from an event of Force Majeure, provided that the party affected by such an event has taken all reasonable precautions, due care and reasonable alternative measures, all with the objective of carrying out the terms and conditions of the Agreement.

vi. **Conflict of Interest**

The selected bidder shall not receive any remuneration in connection with the assignment except as provided in the contract. The team deployed by the Implementation Partner shall not engage in activities that conflict with the interest of HARTRON under this contract and shall be excluded from downstream supply of goods or construction of works or purchase of any asset or provision of any other service

related to the assignment other than a continuation of the Services under the ongoing contract. The team engaged for this assignment should not be deployed in similar nature of assignment of any other state. It should be the requirement of the assigned works that the Implementation Partner should provide professional, objective and impartial advice and at all times hold HARTRON's interest paramount and that in providing advice they avoid conflicts with other assignments and their own corporate interests.

vii. Limitation of Liability

In no event shall either party be liable for consequential, incidental, indirect, or punitive loss, damage or expenses (including lost profits). The selected bidder shall not be liable to the other hereunder or in relation hereto (whether in contract, tort, strict liability or otherwise) for more than the value of the fees to be paid (including any amounts in voicd but not yet paid) under this Agreement.

viii. Dispute Resolution

a) Amicable Settlement

The parties shall use their best efforts to settle amicably all disputes arising out of or in connection with this Agreement or the interpretation thereof. In the event a dispute, differences or claim arises in connection with the interpretation or implementation of this agreement, the aggrieved party shall issue a written notice setting out the dispute/differences or claim to the other party, parties shall first attempt to resolve such dispute through mutual consultation. If the dispute is not resolved as aforesaid within 15 days from the date of receipt of written notice, the matter will be referred to HARTRON, which shall take decision within 30 days after such reference. If the dispute is still not resolved the matter will be referred for Arbitration.

b) Arbitration

In case the dispute is not resolved, any party may issue a notice of reference, invoking resolution of disputes through arbitration in accordance with the provisions of the Arbitration Conciliation Act 1996 or latest. The arbitral proceedings shall be conducted by a sole arbitrator that may be appointed with the consent of parties to such dispute. If there is no agreement among the parties to the identity or

appointment of such sole arbitrator within 30 days of issue of notice of reference, then the arbitral proceedings will be conducted by a panel of three arbitrators, one arbitrator to be appointed by HARTRON and other appointed by the vendor and the third arbitrator to be mutually appointed by the other two arbitrators in accordance with provisions of Arbitration and Conciliation Act, 1996. Arbitration proceedings shall be/conducted in and the award shall be made in English language. Arbitration proceedings shall be conducted at Panchkula.

ix. **Termination of Contract**

a) Termination of Contract by HARTRON

It shall be lawful for HARTRON to terminate the Agreement signed with the selected bidder for this TOR, at any time without assigning any reason and without being liable for loss or damage which the vendor may suffer by reason of such termination, by giving the contractor thirty [30] days' notice in writing by HARTRON for such termination. Any such termination shall be without prejudice to any other right of HARTRON under the Contract.

b) Termination of Contract by the vendor

If the vendor decides to terminate the Contract before the end of contract period, the vendor shall give an advance notice of at least ninety [90] days. If the vendor terminates the contract/Agreement without prior notice of ninety [90] days, then the entire Performance Security shall be forfeited to HARTRON.

x. **Miscellaneous**

The Selection Process shall be governed by and construed in accordance with the laws of India and the Courts at Panchkula shall have exclusive jurisdiction over all disputes arising under, pursuant to and/or in connection with the Selection Process.

HARTRON, in its sole discretion and without incurring any obligation or liability, reserves the right at any time to:

- a) Suspend and/or cancel the Selection Process and/or amend and/or supplement the Selection Process or modify the dates or other terms and conditions relating thereto.

- b) Consult with any Bidder in order to receive clarification or further information.
- c) Retain any information and/or evidence submitted to HARTRON by on behalf of and/or in relation to any Bidder; and/or
- d) Independently verify, disqualify, reject and/or accept any and all submissions or other information and/or evidence submitted by or on behalf of any bidder.

It shall be deemed that by submitting the proposal, the bidder agrees and releases HARTRON, its employees, agents and advisers, irrevocably, unconditionally, fully and finally from any and all liability for claims, losses, damages, costs, expenses or liabilities in any way related to or arising from the exercise of any rights and/or performance of any obligations hereunder, pursuant hereto and/or in connection herewith and waives any and all rights and/or claims it may have in this respect, whether actual or contingent, whether present or future. It is clarified that compensation shall be binding to both the parties under the Arbitration & Reconciliation Act, 1996 or latest.

6 Forms required for Technical Proposal

Cover Letter for Technical Proposal

(On Bidder's Letter Head)

Date:

The Managing Director,
Haryana State Electronics Development Corporation Ltd, HARTRON
Bhawan, Bays No. 73-76,
Sector - 2, Panchkula

Subject: Selection of Service Provider for Design, Development, Deployment, and Maintenance of Haryana Legal Knowledge System for the Chief Secretary's Office, Government of Haryana.

Dear Sir,

1. With reference to your TOR document dated....., we have examined the bid documents and understood their contents and hereby submit our Proposal for the aforesaid Assignment. This proposal is unconditional.
2. All information provided in the Proposal and in the Annexures is true and correct.
3. This statement is made for the express purpose of qualifying as a Bidder for undertaking the Assignment.
4. We shall make available to HARTRON any additional information it may find necessary or require to supplement or authenticate the Bid.
5. We acknowledge the right of HARTRON to reject our Proposal without assigning any reason or otherwise and hereby waive our right to challenge the same on any account whatsoever.
6. We certify that in the last three years, we have neither failed to perform on any contract, as evidenced by imposition of a penalty or a judicial pronouncement or arbitration award, nor been expelled from any project or contract nor have had any contract terminated for breach on our part.
7. We declare that:
 - a. We have examined and have no reservations to the Bidding Documents, including any Addendum issued by HARTRON.
 - b. We do not have any conflict of interest in accordance the TOR document;
 - c. We have not directly or indirectly or through an agent engaged or indulged in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or

restrictive practice, as defined in the TOR document, in respect of any tender or request for proposal issued by or any agreement entered into with HARTRON or any other public sector enterprise or any government,

Central or State; and

- d. We hereby certify that we have taken steps to ensure that in conformity with the provisions of the TOR, no person acting for us or on our behalf has engaged or will engage in any corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice.
8. We understand that you may cancel the bidding process at any time and that you are neither bound to accept any proposal that you may receive nor to invite the bidders to bid for the Assignment, without incurring any liability to the bidders, in accordance with the TOR document.
9. We declare that we are not a member of any other firm submitting a proposal for the assignment.
10. We further certify that in regard to matters relating to security and integrity of the country, we have not been charge-sheeted by any agency of the Government or convicted by a Court of Law for any offence committed by us or by any of our associates.
11. We certify that we have not barred by any State/ Central Government of India or any entity controlled by them from participating in any project, and if the bar subsists on the date of proposal we will not be eligible to submit the proposal.
12. We further certify that no investigation by a regulatory authority is pending either against us or against our associates or against our CEO or any of our Directors/ Managers/employees.
13. We hereby irrevocably waive any right which we may have at any stage at law or howsoever otherwise arising to challenge or question any decision taken by HARTRON in connection with the selection of the bidder, or in connection with the bidding process itself, in respect of the above mentioned assignment and the terms and implementation thereof.
14. In the event of our being declared as the successful bidder, we agree to enter into an agreement in accordance with the draft that has been provided to us prior to the proposal due date. We agree not to seek any changes in the aforesaid draft and agree to abide by the same.
15. We have studied all the bidding document carefully. We understand that except to the extent as expressly set forth in the agreement, we shall have no claim, right or title

arising out of any documents or information provided to us by HARTRON or in respect of any matter arising out of or concerning or relating to the bidding process including the award of concession.

16. We agree and understand that the proposal is subject to the provisions of the bidding document. In no case, we shall have any claim or right of whatsoever nature if the assignment is not awarded to us or our proposal is not opened.

17. We agree to keep this offer valid for 180 (One Hundred Eighty) days from the financial opening date for the ToR.

18. We agree and undertake to abide by all the terms and conditions of the TOR document.

In witness thereof, we submit this proposal under and in accordance with the terms of the ToR document.

Yours faithfully,

(Signature of authorized signatory)

(Name and designation of authorized signatory)

Name and seal of bidder

7 Letter for No Blacklisting

Declaration regarding bidder has not been blacklisted

(On Bidder's Letter Head)

Date:

The Managing Director,
Haryana State Electronics Development Corporation Ltd, HARTRON
Bhawan, Bays No. 73-76,
Sector - 2, Panchkula

Subject: Self Declaration of not been blacklisted in response to TOR for Selection of Service Provider for Design, Development, Deployment, and Maintenance of Haryana Legal Knowledge System for the Chief Secretary's Office, Government of Haryana.

Dear Sir,

We confirm that our company is not blacklisted in any manner whatsoever by any of the state and/or central government in India on any ground including but not limited to indulgence in corrupt practice, fraudulent practice, coercive practice, undesirable practice or restrictive practice.

Yours faithfully,
(Signature of authorized signatory)

(Name and designation of authorized signatory)

Name and seal of bidder

8 Checklist to be enclosed with Technical bid

Dated: -

Managing Director

Haryana State Electronics Development Corporation Limited (HARTRON)

SCO 111-113, Sector 17 B Chandigarh. 160017

Subject: Development, Deployment, and Maintenance of Haryana Legal Knowledge System for the Chief Secretary's Office, Government of Haryana.

Dear Sir,

We, M/s _____ has enclosed documentary evidence for fulfilling the eligibility in the Technical Proposal and other requirements laid in the TOR.

Design, Development, Deployment, and Maintenance of Haryana Legal Knowledge System for the Chief Secretary's Office, Government of Haryana.

#	Criteria	Evaluation Criteria	Max. Marks	Evidence
1.	Bidder Agency/ Company/ Partnership Firm/ Organization Turnover and positive net worth.	Average annual turnover in last 3 financial years. Up to 1 Crore : 5 marks >1.0 Crore <= 5.0 Crore : 7 marks >5 Crore : 10 marks	10	Submit CA Certificate including UDIN with Last 3 years along with Balance Sheets
2	Bidder Relevant Experience and Technical Capabilities	The bidder should have similar experience in development and implementation of IT/ Software solution with one or more Central/ State Government Department/ PSU in India/ Large scale enterprises as per the ToR. Projects with >=value more than Rs. 15 Lakhs. (Ongoing/ Completed in the last 5 years). Maximum 4 projects will be counted with 5 marks for each project.	20	Documentary Proof - Work Order/ PO/ Agreement copy

3.	Any project/product has been developed for a state/central govt./UT during the last 3 years	Any work experience with State Govt./ central/UT = 5 Marks Work experience with Govt. of Haryana = 5 Marks (Additional)	10	Duly attested copy of all valid certificate(s) [as on date of bid submission] in the name of the bidder
4.	Timelines for the product: Customization (for Off-the-shelf) Development (for New Product)	Customization Timeline for OTS product: Within 02 weeks: 15 Marks Up to 03 weeks: 10 marks More than 03 weeks: 05 marks OR For New Development Within 12 weeks: 15 Marks 12 weeks to 16 weeks: 10 Marks >16 weeks: 05 Marks	15	Submit the undertaking duly signed by the authorized signatory.
5.	Evaluation of organization's Technical manpower resources and strength	Team Size: < 10 - 05 marks ≥ 10 and < 25 - 07 marks ≥ 25 - 10 marks	10	Document proofs like self-certified bio data of technical manpower on the letterhead of the Company
6.	The bidder should have presence in the Tri-City (Chandigarh, Panchkula and Mohali)	Delhi/NCR - 02 Marks Panchkula/Chandigarh/ Mohali - 05 Marks	05	Submit Ownership/ Lease Agreement
7.	Presentation (Total Marks 30)			
	Technical Presentation (in Person)	Approach and methodology for project execution as per ToR	4	A soft copy of the Technical Presentation along with the tender documents, stored on a USB drive (pen drive), should reach the office of PM (ICT), HARTRON Bhawan, Sector 2, Panchkula, by
		Understanding of Technical and functional requirements	4	
		Implementation Strategy, Activity wise Project Plan/ Timelines	4	
		Technical stack proposed	3	
		Risk and Mitigation Plan for implementation, data security and data openness, proposed innovation and use of modern technologies.	5	

				10:00 AM on 20.05.2026.
	Mockups or Wireframes of the product	● Impressive and flawless demo: 10 marks ● Adequate demo with some issues: 7 marks ● Unconvincing or problematic demo: 3 marks ● No demo provided: 0 marks	10	
		TOTAL	100	

Annexure: Cost Component

Name of the Agency:

Address:

Commercial Bid: - Design, Development, Deployment, and Maintenance of Haryana Legal Knowledge System for the Chief Secretary's Office, Government of Haryana.

1. Cost Component (A)

Sr. No.	Cost Components	Period	Cost in (₹)	GST in (₹)	Total Cost including GST (₹)
1	Design, Development, Deployment and implementation of desired solution as per the scope of work depicted in the ToR document.	One-Time			
2.	Any recurring costs associated with Training, licensing or paid services required for the solution shall be included.	Annual			

2. Operation & Maintenance Cost (B)

Sr. No.	Cost Components	Period /Validity	Cost in (₹)	GST in (₹)	Total Cost including GST (₹)
1	Annual Operation & Maintenance Cost of the portal.	1 st Year			
2	Annual Operation & Maintenance Cost of the portal.	2 nd Year			
3	Annual Operation & Maintenance Cost of the portal.	3 rd Year			

Please Note: Total Cost X= Cost Component (A) + Operation & Maintenance Cost (B)

Terms & Conditions:

- a. The bidder securing the highest total combined score in the evaluation of quality and total cost (X) shall be ranked as H-1, followed by bidders with progressively lower scores as H-2, H-3, and so on. The proposal achieving the highest combined score and ranked H-1 shall be recommended for award of the contract.

- b. All the bids shall be without any terms & conditions.
- c. The rates quoted should be as per industry standards for the prescribed work. For any work, bids quoting zero or incredibly low rates compared to the industry prevalent rates will be rejected.
- d. The Operation & Maintenance (O&M) cost may be extended beyond the third year on a yearly basis, subject to the requirement of the Chief Secretary's Office, Haryana. The rates for such extension shall carry an annual increment of 5% over the O&M charges quoted by the bidder for the third year, and thereafter shall continue to increase by 5% each year over the rates of the preceding year.